

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**COMPLAINANT’S RESPONSE IN OPPOSITION TO RESPONDENT’S “MOTION FOR
EXTENSION OF TIME TO RESPOND TO CLAIMANT’S MOTION FOR SUMMARY
JUDGMENT”**

INTRODUCTION

Complainant FormuKleen, Inc. respectfully submits this response in opposition to Respondent’s Motion for Extension of Time to Respond to Claimant’s Motion for Summary Judgment (“Motion”), filed on July 29, 2025. The request is procedurally improper, legally unsupported, and factually misleading. It seeks to circumvent a deadline that was clearly established by the Presiding Officer’s July 18 Order, following Respondent’s prior, and already denied, attempt to delay proceedings. Commission rules do not allow parties to reset deadlines merely by changing counsel, particularly after litigation has been active and dispositive motions have already been filed. There is no good cause for an extension, and no valid basis for disturbing the current schedule. The motion should be denied.

BACKGROUND

Complainant filed its Motion for Summary Judgment on July 16, 2025. Pursuant to Commission Rule 502.70(b), Respondent's deadline to respond was July 31, 2025. This deadline was expressly confirmed in the Presiding Officer's July 18, 2025 Order Denying the Respondent's Motion to Stay. That order held that mediation does not stall procedural deadlines and that no concrete reason had been provided to justify delay.

Respondent's new counsel filed a Notice of Appearance on July 22, 2025, fully aware that the summary judgment motion was pending and that the response deadline was July 31. After Complainant explicitly objected to any extension via email, Respondent's motion was filed on July 29, just two days before the July 31 deadline. Under 46 C.F.R. § 502.102(a), such a motion must be filed at least seven days prior unless reasonable grounds exist for the delay. Respondent provides none. Moreover, even if construed as a request to accept a late filing under § 502.102(b), the motion fails to demonstrate "good cause" or why justice requires departure from the rule.

ARGUMENTS

A. The Motion is Untimely Under Commission Rule 502.102(a)

Rule 502.102(a) requires that motions for extensions of time be filed at least seven days before the relevant deadline unless supported by a showing of good cause. Here, the Motion was filed on July 29, just two days before the July 31 deadline. There is no explanation for why Respondent waited so long, and certainly no showing of good cause that would excuse the delay. Respondent has been actively litigating this case, has filed and responded to motions, filed a Verified Answer, and was fully aware of the timeline when its new counsel appeared on July 22. Nothing prevented Respondent from

moving earlier if additional time was truly necessary. Mere substitution of counsel does not constitute “good cause,” particularly when counsel appeared nine days before the deadline.

B. Respondent Misstates Both the Facts and the Law.

Respondent asserts that an extension is justified because “August 5, 2025 would be within 15 days of Counsel having appeared in the case.” (*Motion *1*). Respondent’s motion is premised on a misstatement of the rules. It asserts that August 5 would fall within “15 days of counsel having appeared,” as though that triggers the response deadline. That is incorrect. Under 46 C.F.R. § 502.70(b):

“A response to a dispositive motion must be served and filed within 15 days after the date of service of the motion. The response must include a concise statement of the legal basis of the response with citation to legal authority and specific responses to any statements of material facts with exhibits as appropriate.”

The regulation is clear: the 15-day response period is triggered by **service of the motion**, not by appearance of counsel. The Motion for Summary Judgment was filed and served on July 16, 2025. Accordingly, the response is due July 31, 2025. Respondent’s suggestion that the rules allow for 15 days “from appearance” reflects either a misunderstanding of basic Commission procedure or a deliberate misrepresentation. In either case, it is not a basis for extension.

By rule, the response was due July 31, 2025. The Commission already confirmed this in its July 18, 2025 Order, which left no ambiguity:

“Respondent must respond to the Motion for Summary Judgment no later than July 31, 2025.”

(*Order Denying Motion to Stay, *2.*)

Moreover, accepting this flawed interpretation would incentivize gamesmanship: litigants could delay appearances in order to reset deadlines already established under Commission order. That is precisely what the rules and the July 18 Order were meant to prevent.

C. This is Respondent's Second Attempt to Secure a Delay.

Respondents prior Motion to Stay was already denied on July 18, with the Presiding Officer rejecting Respondents arguments justifying deviation from the deadlines. This renewed request is functionally identical and should be denied for the same reasons. The record is clear, the schedule is fixed, and Respondent offers no new basis to disturb it.

D. Respondent Provides No Legal or Compelling Basis for Allowing an Already-Denied Extension

Respondent's motion consists of eight conclusory statements, none of which provide a legal basis or compelling justification for relief. The substance of the motion is as follows:

- “1. This Motion is made under 46 U.S.C.A.502.12.
2. Counsel did not appear in the case until July 22, 2025.
3. The Response is due on July 31, 2025.
4. The Respondent is seeking an extension of time until August 5, 2025 in order to file its response as Counsel has only been of record for a week.
5. The Rules allow for a Response within 15 days and August 5, 2025 would be within 15 days of Counsel having appeared in the case.
6. It is not felt that the Claimant will be prejudiced as it is early in the case and no discovery has even begun on this matter.

7. The undersigned apologizes for not having filed this Motion earlier, that is 7 days before the due date.

8. An email was sent to the Claimant's representative to see if an agreement could be reached, but the opposing party was not in agreement."

(*Motion*, *1, *2)

None of these points satisfy the standards under Commission Rule 502.102(a), which mandates that a motion for extension filed less than seven days before a deadline must be supported by a "good cause." No such showing is made.

- Point 1 references the incorrect statutory basis. There is no such section as 46 U.S.C.A. § 502.12. If counsel intended to invoke Commission Rule 502.102(a), he misstates both the citation and the governing standard.
- Points 2–5 rest on a false premise: that the response clock is somehow reset by counsel's appearance. That is incorrect. The summary judgment motion was filed on July 16, 2025. Under Rule 502.70(b), the response is due July 31. Changing counsel does not alter that deadline. The Commission already **denied** Respondent's prior attempt to reset deadlines via a motion to stay. This is effectively a second bite at the same apple, now improperly styled as a motion for extension.
- Point 6 is a red herring. Whether discovery has begun is irrelevant to whether summary judgment response deadlines apply. Respondent's Verified Answer, filed before counsel appeared, is the foundation of the pending motion. The proceedings are far from "early"; multiple motions have been litigated, deadlines have been set and enforced, and the Commission has already rejected requests for delay.

- Point 7 is an admission of procedural failure. Counsel concedes he did not comply with the clear requirement of Rule 502.102(a), which requires filing an extension motion no fewer than 7 days before the deadline. No valid excuse is offered. A belated apology does not constitute good cause.
- Point 8 confirms that Respondent knew Complainant opposed the extension, yet filed a perfunctory and legally hollow Motion regardless; demonstrating disregard for both Commission procedure and the burden of justification required for such relief.

In short, the motion fails procedurally, legally, and substantively. It misrepresents the applicable deadlines, misstates the governing rules, and offers no justification beyond internal strategy decisions. The extension should be denied in full.

CONCLUSION

Respondent has failed to comply with the applicable rules, and failed to provide good cause for any extension. The Motion misrepresents the facts and seeks to relitigate a deadline that has already been resolved by Commission order. Further delay would unfairly prejudice Complainant by derailing the Commission's established briefing timeline, rewarding Respondent's prior attempts to obstruct and delay through baseless motions, and eroding the procedural integrity safeguarded by Commission order.

Complainant respectfully requests that the Motion be denied and that the existing schedule be enforced without further delay.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

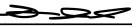
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Signature: _____

Date: 07/29/2025_____

CERTIFICATE OF SERVICE

I certify that on July 29th, 2025, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondents:

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